Montgomery County District Court

Cause No. 2024-CV-0006

Justin Anderson, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Oral Deposition of Justin Anderson

Date:	December 22, 2024
Location:	Offices of Marshall & Dominguez LLP
Examining attorney:	Richard Marshall, Ashford & Lyle LLP
Defending attorney:	Kyle Sanders, Marshall & Dominguez LLP

Q: Plesae state your full name for the record.

A: I'd rather not put my full name in a transcript for a test file, so just call me the plaintiff.

Q: Let's keep it simple. Where were you when the colliison happened?

A: I was stopped at a red light in League City, Texas, in the right lane of a two-lane road, waiting to turn.

Q: What was the first thing you noticed?

A: I saw headlights in my mirror, and then there was a hard impact from behind. My head snapped back and then forward, and my right shoulder slammed against the seatbelt.

Q: Did you feel any pain at the scene?

A: Some, but I thought it was mostly soreness. I figured I'd walk it off.

Q: When did the shoulder pain become serious?

A: Within a day or two. I couldn't lift my arm above my chest without a sharp pain, and I started sleeping on the left side just to avoid it.

Q: Did you seek medical care?

A: Yes. I went to an urgent care clinic first, then I was referred to an orthopedic doctor. They ordered imaging and started me on physical therapy.

Q: How often were you attending physical therapy?

A: Several times a week for a while. The exercises were hard, and some sessions left me sore for the rest of the day.

Q: Has the treatment changed how you live day to day?

A: A lot. I used to coach my nephew's soccer team on weekends, and I had to hand that off to my brother. I can't carry groceries with my right arm, so my partner does most of the shopping. Getting dressed takes longer, especially shirts with buttons.

Q: Have you returned to your regular work duties?

A: I've gone back in a limited capacity. I can do desk tasks, but anything requiring overhead reaching or lifting over about ten pounds is off limits right now.

Q: Are you still having symptoms today?

A: Yes. The shoulder aches when the weather changes, and I sitll get a catch when I reach toward the back seat of my car. My doctor says improvement is gradual, and I'm still in therapy.